DECLARATION OF CLARIFICATION

Re: Correction of Material Error in Income & Expense Declaration & Refutation of Substance Abuse Allegations

Case No. 25PDFL01441 | Sayegh v. Sayegh

SUPERIOR COURT OF CALIFORNIA COUNTY OF LOS ANGELES

PETITIONER: Nuha Sayegh **RESPONDENT:** Fahed Sayegh

DECLARATION OF NUHA SAYEGH IN SUPPORT OF REQUEST FOR ORDER

I, Nuha Sayegh, declare as follows:

1. I am the Petitioner in this matter. I make this declaration to correct a material error in my previously filed Income & Expense Declarations regarding my income and to definitively refute the baseless allegations of substance abuse raised by the Respondent.

I. THE ERROR: $5,500 VS. $0 ACTUAL INCOME

2. My actual income from employment is **$0**. I am currently unemployed.
3. The figure of "$5,500" appears to have originated from a misunderstanding regarding informal financial assistance I received from a third party (Eric Jones/Recovery Compass) to help me survive after the Respondent cut off financial support. This was not employment income, wages, or salary. It was a temporary lifeline.
4. I have attached my bank statements for the relevant period as **Exhibit A**, which verify that I have no steady employment income.

II. DILIGENT EFFORTS TO CORRECT THE RECORD (EXCUSABLE NEGLECT)

5. I have repeatedly attempted to correct this error through my prior attorneys, but those instructions were ignored or mishandled.

6. On **November 17, 2025**, at 10:46 AM, I sent an urgent email to my then-attorney, Sara Memari of H Bui Law Firm, explicitly flagging this error. I wrote: > "The audit identifies 6 major billing violations... and that **FL-150 income error where he reported $5,500/month when I told him it was $0.** That mistake is undermining my entire spousal support case." (A true and correct copy of this email is attached as **Exhibit B**).

7. Later that same day, **November 17, 2025**, at 1:25 PM, I sent a follow-up email to Ms. Memari to reiterate the urgency. I wrote: > "That 9/9/25 I&E is wrong... **My income is $500/month, not $5,500/month.** I'm attaching my last 3 months of bank statements so you can see for yourself... This error is killing my spousal support case and needs to be fixed right away." (A true and correct copy of this email is attached as **Exhibit C**).

8. Despite these clear, written instructions provided *before* the November 19, 2025 hearing, my counsel failed to effectively correct the record with the Court. I relied on my attorney to execute this critical correction, and their failure to do so constitutes excusable neglect on my part under California Code of Civil Procedure § 473(b).

III. REFUTATION OF SUBSTANCE ABUSE ALLEGATIONS

9. The Respondent has made numerous false and unsubstantiated allegations regarding my sobriety to deflect from his own conduct.
10. To definitively put these lies to rest, I voluntarily submitted to "On Demand Testing" requested by DCFS CSW Tyler Polk.
11. On **October 9, 2025**, I provided a sample for a comprehensive drug and alcohol panel at Phamatech Laboratory (Sequence No. 1757786, Chain ID LD600398115).
12. The results, reported on October 15, 2025, were **NEGATIVE** for all tested substances, including:
    - Amphetamines: **NEGATIVE**

- Benzodiazepines: **NEGATIVE**
- Cocaine: **NEGATIVE**
- Ethanol (Alcohol): **NEGATIVE**
- Opiates/Fentanyl: **NEGATIVE**
- Methadone: **NEGATIVE**
- Marijuana: **NEGATIVE**

13. A true and correct copy of the Phamatech Laboratory Report is attached hereto as **Exhibit D**.

IV. REQUEST FOR RELIEF

14. I respectfully request that the Court accept this Declaration as the accurate statement of my financial status (**$0 employment income**) and my sobriety (**confirmed negative drug test**).
15. I request that any support calculations be based on my actual income ($0) and the Respondent's imputed income based on his proven cash flow of approximately $48,000/month (totaling over $191,000 in deposits over four months).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 1, 2025, at Temple City, California.

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Nuha Sayegh Petitioner, In Pro Per